LEASE CONTRACT

This **Lease Contract** is entered into by the Lessor and the Lessee named hereunder, who agree as follows:

SECTION I - SUMMARY OF BASIC LEASE PROVISIONS

LESSOR	
Name	SM PRIME HOLDINGS INC
Address	7F MOA SQUARE SEASHELL LANE COR CORAL WAY MOA COMPLEX CBP 1A PASAY CITY NCR 4TH DISTRICT 1300
Authorized Representative	SUZARA Y. TEE, Authorized Representative, Or JANE MARIE ANTONETTE S. GARCIA, Authorized Representative

LESSEE	
Name	FAMILY TIMES FOODS INC
Trade Name	CAFE MARY GRACE
Address	2981 MAHOGANY ST UNITED PARANAQUE SUBD SAN MARTIN DE PORRES PARANAQUE CITY
Authorized Representative	ADRIAN P. DIMACALI, Director

THE LEASED AREA		
Development SM CITY BICUTAN	**Area Code** C129-C130A	**Floor Area (in sqm)** 137.3200 (approx.)

PERMITTED USES
40% Pasta, Salads, Sandwiches 20% Ensaymadas, and Cheeserolls 20% Drinks 10% Lemon Squares 10% Cakes

LEASE PERIOD	
Commencement Date 15 February 2025	**Termination Date** 31 January 2028

RENTAL RATES PER MONTH (exclusive of VAT)		
Basic Rent / sqm	P 1,000.00	15 February 2025 - 31 January 2026
	P 1,100.00	01 February 2026 - 31 January 2027
	P 1,210.00	01 February 2027 - 31 January 2028
Percentage Rent	Five Percent (5.00%) of Gross Sales on Regular Sales	
Minimum Rent / sqm	P 1,200.00	15 February 2025 - 31 January 2026
	P 1,320.00	01 February 2026 - 31 January 2027
	P 1,433.15	01 February 2027 - 31 January 2028
Computation of Rental Charges: [Basic Rent + % Rent on Regular Sales] or Minimum Rent, whichever is higher Plus % Rent on Other Income (if applicable)		

OTHER MONTHLY CHARGES (Rates are subject to adjustment by the Lessor from time to time)		
Common Area	P 160.00 / sqm	Starting upon Turnover of Premises or 30 days before Commencement Date, whichever comes first
Pest Control	P 3.50 / sqm	
Electricity, Water	Based on actual consumption as reflected in meter reading, if applicable	
Chilled Water	Based on actual tonnage capacity, if applicable	

ADVERTISING AND DEPOSITS		
Advertising/Year	P 30,000.00	
Security Deposit	P 988,704.00	15 February 2025
	P 1,087,574.40	01 February 2026
	P 1,198,803.60	01 February 2027
Advance Rent	P 164,784.00	15 February 2025
Construction Bond	P 100,000.00	

Any reference in the Lease Contract to any of the provisions (or the "Basic Provisions") summarized under Section I hereof, shall be deemed to refer equally to the relevant provisions of the Lease Contract from which said summary derives.



Lessee hereby consents (i) to the collection, recording, organization, storage, updating, retrieval, consultation, use, consolidation, transfer, sharing, and/or processing of Lessee's personal information and sensitive personal information, including those of Lessee's authorized signatories/representatives, and persons provided by Lessee ("Lessee's Representatives"), by Lessor and its related corporations and affiliates (collectively, "SM Prime Group"), their agents and authorized service providers, in order to review, process, implement or perform acts in relation to the tenant application form, tenant profile form, contract of lease, including its annexes, supplements, amendments, and such other documents submitted by Lessee in connection therewith and to process and/or respond to Lessee's request, query, feedback, or comments and (ii) to the SM Prime Data Privacy Policy found at https://www.smprime.com/privacy-policy/.

of

IN WITNESS WHEREOF, the parties have executed and delivered this Contract of Lease, this _____ day of _____ at _____, Philippines.

LESSEE

By:
ADRIAN P. DIMACALI
Director

LESSOR

By:
SUZARA Y. TEE
Authorized Representative

Or

JANE MARIE ANTONETTE S. GARCIA
Authorized Representative

WITNESSES:

_____

_____
TRISHIA AIRA MAE V. SAN PEDRO

ACKNOWLEDGMENT

Republic of the Philippines)
_____)

At _____, Philippines, this _____ day of _____, personally appeared the following persons, with the following identification references:

Name	Competent Proof of Identity	Valid Until
SM PRIME HOLDINGS INC	TIN003058789	
SUZARA Y. TEE	TIN211903363	
JANE MARIE ANTONETTE S. GARCIA	TIN202208268	
FAMILY TIMES FOODS INC	TIN008300100	
ADRIAN P. DIMACALI	UMID011107773048	

Known to me and by me known to be the same persons who executed the foregoing Lease Contract and who acknowledged to me that the same constitutes their free and voluntary act and those of the corporations they respectively represent.

WITNESS MY HAND AND SEAL on the date and at the place first above written.

Doc No _____
Page No _____
Book No _____
Series of _____